

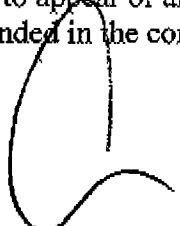
**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**-----X
JOSEPH SEXTON,

Plaintiff

- against -

**THE CITY OF NEW YORK,
PO JONATHAN CRESPO (SHIELD #21685)
Defendant.**Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS**-----X
TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 19, 2020
MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, New York 10168
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

OFFICER JONATHAN CRESPO (SHEILD #21685)

PSA 8 PRECINCT

2794 Randall Avenue

Bronx, NY 10465

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

JOSEPH SEXTON

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
PO JONATHAN CRESPO (SHIELD #21685)**

Defendant.

Plaintiff JOSEPH SEXTON, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department ("NYPD") officers mentioned herein, including PO JONATHAN CRESPO (hereinafter referred to as "CRESPO"), were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff JOSEPH SEXTON (hereinafter referred to as "SEXTON") is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 9:30pm on January 31, 2014, in and around the cross street of Soundview and Lafayette Avenues, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. On January 31, 2019, SEXTON was coming from his friend's apartment on Noble Avenue, in Bronx County, and walking towards the #27 bus stop in order to take the bus home.
10. Before getting to the bus stop, SEXTON walked into a bodega located on the corner of Soundview Avenue and Lafayette Avenue, to get a soda and cigarettes.
11. Upon arriving inside the bodega, SEXTON saw some of his friends, whom walked with him to the bus stop after the purchase of his soda and cigarettes.
12. While waiting for the #27 bus, approximately 4 plain clothes police officers, including CRESPO, aggressively approached SEXTON and threw him against the wall.
13. After being searched, SEXTON had his jacket taken from him, was handcuffed and was thrown in an unmarked car.
14. SEXTON was driven to PSA 8 in Bronx County and held there for approximately 3 hours before being taken to the 43rd Precinct.
15. While at the 43rd Precinct, numerous officers attempted to interrogate SEXTON.
16. During the interrogation attempt is where SEXTON first learned that he was being charged with gun possession.
17. SEXTON initiated a previous lawsuit against the 43rd Precinct, and faced constant harassment from that moment on.
18. SEXTON was brought to central booking and on February 1, 2019 was arraigned on felony gun possession charges, where \$50,000.00 bail was set.

19. Unable to make bail, SEXTON languished in the Vernon C. Bain Center correctional facility until July 30, 2019, equaling approximately 179 days of incarceration.
20. While incarcerated, SEXTON was assaulted by another inmate, resulting in physical and psychological injury, which he received psychological treatment for while incarcerated.
21. Additionally, while incarcerated, SEXTON lost his job at a trucking company.
22. After professing his innocence throughout the entire criminal prosecution, the felony case against SEXTON was dismissed on August 14, 2019.
23. As a result of being arrested by NYPD officers, Plaintiff SEXTON suffered physical injuries, while incarcerated. In addition to suffering physical injuries to his person, SEXTON suffered emotional distress.

FIRST CAUSE OF ACTION: FALSE ARREST

24. Paragraphs 8-23 are incorporated by reference as fully set forth herein
25. CRESPO arrested SEXTON intentionally, and SEXTON at all times was aware she was being arrested and did not consent to being arrested.
26. As a result of being arrested by CRESPO and the NYPD officers, SEXTON suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.
28. The officers who arrested the SEXTON, as described in paragraphs 8-23, intended to confine him. SEXTON was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

29. Paragraphs 1-28 are incorporated by reference as though fully set forth herein.
30. In arresting SEXTON as described in paragraphs 8-23, the arresting NYPD officers, including CRESPO, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
31. In arresting SEXTON as described in paragraphs 8-23, the arresting NYPD officers, including CRESPO sought either a detriment to SEXTON or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
32. As a result of defendants' abuse of process, SEXTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

33. Paragraphs 1-32 are incorporated by reference as though fully set forth herein.

34. In arresting Plaintiff as described in paragraphs 8-23, the arresting NYPD

officers, including CRESPO, acted with malice and without probable cause.

35. As a result of being maliciously prosecuted by the arresting NYPD officers, including CRESPO, SEXTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

36. Paragraphs 1-35 are incorporated by reference as though fully set forth herein.

37. Upon information and belief, the officers who illegally arrested SEXTON were at all times relevant duly appointed and acting officers of the City of New York Police Department.

38. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

39. SEXTON is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

40. The defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
41. On or about January 31, 2019, as described in paragraphs 8-23, armed officers of the NYPD, including CRESPO, while effectuating the seizure of the SEXTON, searched and seized, SEXTON, and grabbed the SEXTON's person, without a court authorized arrest or search warrant. The officers seized the person of the SEXTON during the arrest process in an unlawful and excessive manner. SEXTON was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
42. The above actions of the arresting officers caused the SEXTON to be deprived of the following rights under the United States Constitution:
- (a) Freedom from illegal search and seizure,
 - (b) Freedom from false arrest,
 - (c) Freedom from malicious prosecution,
43. The arresting officers, including CRESPO, subjected the SEXTON to such deprivations, either in a malicious or reckless disregard of the SEXTON's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.
44. The direct and proximate result of the officers' acts are that SEXTON has suffered severe and permanent physical and psychological injuries. SEXTON was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

45. Paragraphs 1-44 are incorporated by reference as though fully set forth herein.
46. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.
47. As a result of the negligence by Defendant CITY, SEXTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

48. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.
49. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.
50. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the SEXTON unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.

51. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:
- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
52. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

TENTH CAUSE OF ACTION: NEGLIGENT HIRING

53. Paragraphs 1-52 are incorporated by reference as though fully set forth herein.
54. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals or conduct illegal searches.

WHEREFORE, Plaintiff JOSEPH SEXTON demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements

of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

November 20, 2020

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY 10168
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

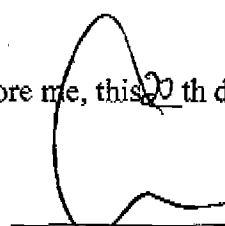
That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
November 20, 2020


JOSEPH SEXTON

Subscribed and sworn to before me, this 20th day of November 2020



Notary Public

CONWAY C MARTINDALE II
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 11/26/22

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

JOSEPH SEXTON,

Plaintiff,

-against-

**THE CITY OF NEW YORK
PO JONATHAN CRESPO (SHIELD #21685)**

Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
380 Lexington Avenue, 17th Floor
New York, NY. 10168
(212) 405-2233

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

OFFICER JONATHAN CRESPO (SHEILD #21685)
PSA 8 PRECINCT
2794 Randall Avenue
Bronx, NY 10465